

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION APPROPRIATING EXCESS FUNDS FROM THE NOVEMBER 2, 2021, ONE PERCENT (1%) SPECIFIC PURPOSE SALES AND USE TAX FOR THE ACQUISITION OF REAL PROPERTY.”

WHEREAS, at the special election held in Laramie County on November 2, 2021, voters approved specific purposes to be funded by a one percent (1%) specific purpose sales and use tax;

WHEREAS, pursuant to Wyo. Stat. § 39-15-211, the Governing Body may appropriate its proportionate share of excess funds from such tax for other specific purposes authorized by a majority vote of the Governing Body, provided such appropriation does not fund the ordinary operations of local government;

WHEREAS, final accounting and reconciliation of revenues from the November 2, 2021 tax are not yet complete, with completion anticipated to occur in May or June 2026;

WHEREAS, the Governing Body has identified the property commonly known as the former Senior Center, located at 2101 Thomes Avenue and owned by the Cheyenne Housing Authority, as suitable for municipal purposes;

WHEREAS, the property’s proximity to the City’s municipal building will provide operational efficiencies, improved public access to services, and enhanced coordination of City functions;

WHEREAS, acquisition and renovation of the existing structure is more cost-effective than acquisition and construction of a new facility, and therefore represents a fiscally responsible use of public funds;

WHEREAS, based on historical performance of comparable ballot measures, including approximately Five Million Seven Hundred Twenty-Nine Thousand Four Hundred Fifty-Two Dollars (\$5,729,452.00) in excess funds generated from the 2017 specific purpose sales and use tax, the Governing Body finds that sufficient excess revenues are expected to be available to fund acquisition of the Senior Center; and

WHEREAS, the use of excess specific purpose sales and use tax revenues for the acquisition of real property constitutes a capital expenditure and does not fund ordinary governmental operations, in compliance with Wyo. Stat. § 39-15-203(a)(iii)(B).

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that, to the extent excess funds are available following final reconciliation, excess tax funds from the November 2, 2021 one percent (1%) specific purpose sales and use tax in an amount not to exceed One Million One Hundred Seventy-Seven Thousand Sixty-Two Dollars and Ninety-Seven Cents (\$1,177,062.97) are hereby appropriated for the purpose of acquiring the real property located at 2101 Thomes Avenue, Cheyenne, Wyoming, from the Cheyenne Housing Authority.

BE IT FURTHER RESOLVED, that this Resolution shall be effective upon passage and execution by the Mayor and City Clerk.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____,
2026.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk